



SINGLE SOURCE JUSTIFICATION NOT EXCEEDING THE SIMPLIFIED ACQUISITION THRESHOLD

SECTION 1: IDENTIFICATION OF THE AGENCY AND THE CONTRACTING ACTIVITY

Department of State Contracting Activity

☒ Overseas Post US Embassy Cotonou

Requiring Activity

Outbound Courier Services

SECTION 2: NATURE AND/OR DESCRIPTION OF THE ACTION BEING APPROVED

Approval is requested to award on a sole source basis to DHL Internation Benin SARL for the supplies and/or services described in Section 3 on behalf of the Requiring Activity.

SECTION 3: DESCRIPTION OF SUPPLIES/SERVICES REQUIRED TO MEET THE AGENCY'S NEEDS

The requirement is to provide outgoing pouch courier services at US Embassy Cotonou. The estimated value for the entire period of performance (June 1, 2025-July 31, 2025) is \$30,000, including options. These supplies/services require that the Contractor shall pick up the packages from the US Embassy and ensure safe and quick delivery to the destination.

SECTION 4: IDENTIFICATION OF THE STATUTORY AUTHORITY PERMITTING OTHER THAN FULL AND OPEN COMPETITION

In accordance with Federal Acquisition Regulation (FAR) 13.106-1(b)(1), the Contracting Officer has deemed only one source reasonably available based on the following:

- ☐ Urgency
- ☐ Exclusive licensing agreements
- ☐ Brand-name
- ☐ Industrial mobilization
- ☒ Other

SECTION 5: DEMONSTRATION THAT THE PROPOSED CONTRACTOR'S UNIQUE QUALIFICATIONS OR THE NATURE OF THE ACQUISITION REQUIRES USE OF THE AUTHORITY CITED



The Government has a requirement for outgoing pouch and express mail services for agencies at the U.S. Embassy Cotonou. While the Embassy pursues the award of a 5-year competitive contract, it is necessary to issue a PO to avoid interruption of crucial Embassy services. We are anticipating a not to exceed amount of \$30,000 (18,000,000 XOF).

The current contractor, DHL International Benin SARL, has been providing contract services to US Embassy Cotonou since January 2022. US Embassy Cotonou determined that it was in the US Government's best interests to terminate the contract for convenience on December 12, 2024, under the authority of FAR 52.249-2 due to SAM registration issues. Nevertheless, US Embassy Cotonou continues to require these services on a weekly basis, but our market survey indicates there are no other available vendors who are SAM registered. If service is interrupted, US Embassy Cotonou will be unable to send outgoing mail, disrupting necessary communications and deliveries to US Government agencies as well as its partners and costing time and money. To ensure we are meeting procurement requirements and not allowing for an interruption of services Post has decided to issue a limited PO so that services can continue uninterrupted while working on a remediation plan and acquisition strategy.

Embassy Cotonou recognizes the importance of completing a comprehensive evaluation of the market so that it can execute a five-year contract with a service provider through a competitive effort. At the same time, it is important that services not be interrupted. This PO will give the Contracting Officer and the Contracting Officer Representative the time needed to develop a plan for moving forward with a solicitation. Since SAM registration is a mandatory USG requirement for all overseas contracts over \$30,000 unless an exemption at FAR 4.1102(a) exists, the Embassy may issue more than one Purchase Order under \$30,000 for these services until a new competitive award

SECTION 6. DETERMINATION BY THE CONTRACTING OFFICER THAT THE ANTICIPATED COST TO THE GOVERNMENT IS FAIR AND REASONABLE

By signing the justification, the Contracting Officer makes a determination that the price to the Government is anticipated to be fair and reasonable. The prices awarded will be negotiated based on recent rates paid by the Federal Government for these same services.

SECTION 7. CERTIFICATIONS

All reviews and approvals should be completed in the order listed unless otherwise authorized or required.

REQUIREMENTS CERTIFICATION



Office of the Procurement Executive

U.S. DEPARTMENT of STATE

I certify that the facts and representations under my cognizance which are included in this Justification and its supporting acquisition planning documents, except as noted herein, are complete and accurate to the best of my knowledge and belief.

Requirements Cognizance:

SIGNATURE:

May 6, 2025

Date

Diana E. Toussaint
Diplomatic Technology Officer
DTO, US Embassy Cotonou

CONTRACTING OFFICER CERTIFICATION

I certify that this submission is accurate to the best of my knowledge, and that it contains complete information necessary to enable other officials to make an informed recommendation for approval or disapproval.

SIGNATURE:

May 6, 2025

Date

Rebecca J. Stone
Contracting Officer
GSO, US Embassy Cotonou